

	Reasonable Rate	Reas. Hours	Amount
Benjeman Beck	\$450	62.2	\$27,990
Misoo Choi Kimbal	\$350	19.3	\$6,755
De Los Santos	\$100	12	\$1,200
TOTAL			\$35,945

Plaintiff also requests a 1.5 multiplier. "The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased." (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) "The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]" (*Ibid.*) The Court does not find a multiplier warranted in this instance and **DENIES** the request for a multiplier.

Plaintiff also request an award of costs in the amount of \$3,097.87. FCA does not oppose the request for costs and therefore the request is **GRANTED**.

In total, the Motion is **GRANTED**, in part, and a total of \$39,042.87 is awarded as fees and costs (\$35,945 + \$3,097.87).

Counsel for Plaintiff is to give notice of this ruling.

2 Green v. Cleeland

The unopposed Motion for Discovery and Monetary Sanctions filed by plaintiff Michele Green is GRANTED in part and DENIED in part, as set forth herein.

Pursuant to Code Civ. Proc. § 2023.010(d), failing to respond to an authorized method of discovery is a misuse of the discovery process warranting sanctions. So, too, is disobeying a court order to provide discovery. (Code Civ. Proc. § 2023.010(g); *Van Sickle v. Gilbert* (2011) 196 Cal. App. 4th 1495, 1516.) Imposition of sanctions for misuse of discovery lies within the trial court's discretion. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 991.) Once a party is ordered by the court to provide responses to discovery, continued failure to respond may result in the imposition of more severe sanctions. (See Code Civ. Proc. §§ 2030.290(c) (interrogatories), 2031.300(c) (requests for production).)

Disobeying a court order to provide discovery is a misuse of the discovery process. Cal. Civ. Proc. Code § 2023.010(g); *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.

The moving party need only show the failure to obey the court's earlier discovery orders. Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (*Corns v. Miller* (1986) 181 Cal. App. 3d 195, 201; *Puritan Ins. Co. v. Sup.Ct. (Tri-C Machine Corp.)* (1985) 171 Cal. App. 3d 877, 884.)

		Here, on 10/8/25 the court granted the plaintiff's discovery motion and ordered Cleeland to provide verified responses, without objection, within 20 days after service of notice of this ruling, for the Form Interrogatories, Special Interrogatories, and Requests for Production. The plaintiff served a notice of the ruling on 10/9/25. Cleeland has failed to serve the court ordered responses. (Beggs Decl. ¶4) In the instant motion, plaintiff requests various sanctions, including terminating sanctions. Because terminating sanctions are drastic, it is generally recognized that "terminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) However, the court does find evidentiary sanctions warranted and therefore the motion is GRANTED, in part. As a result of the failure to comply with the court's 10/8/25 order, it is ORDERED that at the trial of this matter, (1) Rhonda Cleeland will be prohibited from offering any evidence at trial relating to any documents which were the subject of the seven requests for production of documents attached to the Motion to Compel at ROA 42 and (2) Rhonda Cleeland will be prohibited from offering any evidence at trial relating to any of the contentions identified in special interrogatories 1-18 attached to the Motion to Compel at ROA 42. In addition, the plaintiff's request for monetary sanctions pursuant to Code of Civil Procedure §2023.030(a) and 2030.290 is GRANTED, in part, and Rhonda Cleeland is ordered to pay \$677.98 in monetary sanctions to plaintiff, through her attorney of record, within 30 days. The plaintiff's request that the court order sanctions pursuant to Code of Civil Procedure §177.5 is DENIED because Section 177.5 was not referenced in the Notice of Motion. Counsel for Plaintiff is to give notice.
3	Rambunctious Ventures, LLC vs. J.W. Financial Solutions Inc.	Defendants J.W. Financial Solutions Inc., ("JWF"), J.W. FS LLC ("JW FS"), W. Joseph Mashini ("Mashini"), Palisade Legal Group PLLC ("Palisade"), and PLG Staffing LLC's ("Defendants" all together) demurrer to plaintiffs Rambunctious Ventures, LLC, and Robert Ainsworth's ("Plaintiffs" together) Second Amended Complaint ("SAC") is SUSTAINED. Defendants demur to all seven of the causes of action ("COA") in the SAC on the basis they fail to state sufficient facts. (Civ. Proc. Code § 430.10(e).) The court first notes since Mashini's prior demurrer was ruled as moot by the court (ROA 230) Mashini may join in this demurrer. <u>COA No. 1 – Breach of Implied Contract</u> This is a new COA, which was not included in the First Amended Complaint ("FAC"). Plaintiffs were not given leave to add any new